HILCHOT SEFIRAT HAOMER AND SHAVUOT – SHULHAN ARUKH

# Counting the Omer: The Misvah, Its Source & When to Count

Sefirat HaOmer — Siman 489

---

## Introduction — What Is the Omer?

### The Sacrifice of the Omer

On the night after Pesach (the 16th of Nisan) — in Temple times there was only one day of Pesach — the following procedure took place:

**Night of the 16th:** The barley was harvested (cut) in a public ceremony. This was done emphatically and repeated three times to make clear that "mimacharat ha-Shabbat" means the night after Pesach — not Saturday night, as the Tzedukim (Sadducees) claimed. This is the origin of the declaration some communities recite on the first night of counting.

**During the night:** The barley was ground into flour.

**Morning of the 16th (first day of Chol HaMoed):** The ground barley was brought to the Kohen. The Kohen performed tenufah (waving) of the Omer, then took a kometz (three fingers' worth) and burned it on the altar.

**From that moment:** It became permitted to eat from the new produce (chadash) of that year. Before the Omer sacrifice, there is a Torah prohibition against eating new harvest grain. This prohibition still applies today (Se'if 10 discusses this).

### Why Is It Called "Omer"?

The Torah says: "ve-ha'Omer asirit ha-eifah hu" (Beshalach) — an Omer is a measurement, one-tenth of an eifah. The amount of barley waved and sacrificed was an Omer, and the name stuck.

### The Mitzvah of Counting

**The Torah (Emor):** "U-sefartem lachem mimacharat ha-Shabbat, mi-yom havi'achem et omer ha-tenufah, sheva shabbatot temimot tiheyenah" — Count from the day you bring the Omer offering, seven complete weeks.

So on the night of the 16th — the same night the barley was harvested — we begin counting. This continues for 49 nights until Shavuot.

---

### The Major Machloket: Is Counting the Omer De'oraita or De-rabbanan Nowadays?

Since we no longer have the Beit HaMikdash and therefore no Omer sacrifice, is the counting still a Torah obligation?

| Opinion | Ruling | Reasoning |
|---|---|---|
| **The Rosh and Ran** (majority of Rishonim) | De-rabbanan nowadays | The Torah says "u-sefartem lachem mi-yom havi'achem et omer ha-tenufah" — count from when you bring the Omer. Counting and sacrifice are **intrinsically linked**. No sacrifice = no Torah-level counting. |
| **The Rambam** (minority, but it's the Rambam) | De'oraita even nowadays | The Torah is telling you **when** to count, not linking the two mitzvot. They begin on the same night but are independent. No sacrifice doesn't affect the counting obligation. |

**The Shulchan Aruch (Se'if 2):** Rules me'ikar ha-din like the majority — Sefirat HaOmer is **de-rabbanan** nowadays.

## Why Does This Matter?

The biggest practical difference is **timing**:

| If De'oraita (Rambam) | If De-rabbanan (Rosh/Ran) |
|---|---|
| Must count only after **nightfall** (tzeit ha-kochavim) — just like all Torah mitzvot done at night | Can count already from **sunset** (bein ha-shmashot) — safek de-rabbanan le-kula |

Other differences arise throughout the Shulchan Aruch (e.g., what happens if you miss a night).

---

## Why Do We Count Upwards?

**The Sefer HaChinuch:** Counting the Omer is preparation for Shavuot — just like someone counting down to an exciting event.

**The obvious question:** If we're excited about Shavuot, shouldn't we count downwards? "49 days to go, 48 days to go..."

**The answer:** Counting downward means the days in between have no intrinsic value — you're just letting time pass. Counting **upward** (1, 2, 3...) shows that each day has its own value. You're not waiting for Shavuot passively — you're actively building toward it, making each day count.

**Analogy:** An employer says: "Work for 100 days and earn £100,000 — £1,000 per day, but you have to show up." The employee comes home each night and says: "One day done — £1,000 earned. Two days — £2,000." He counts upward because each day represents real, earned value. Counting "99 days left" would miss the point — you have to do the work.

**In Kabbalistic literature:** This period between Pesach and Shavuot is the greatest time of the year — even greater than Elul — for building one's spiritual identity.

---

## Why No Shehecheyanu?

Two reasons given:

**Reason 1 (based on the Rosh — de-rabbanan):** Since the counting today is only a zecher (remembrance) of the Temple-era mitzvah, there is an element of sadness — we don't have the full mitzvah. This is also the origin of saying **"HaRachaman hu yachzir avodat Beit HaMikdash li-**

**mekomah"** after counting — praying for the return of the Temple so the mitzvah can be fulfilled mi-de'oraita.

**Reason 2:** The counting is a hechsher mitzvah — a preparation for Shavuot. The Shehecheyanu we say on Shavuot night covers both the Chag and the completion of the 49-day count.

**Important:** The mitzvah itself is only the bracha and the counting. Not the Leshem Yichud before. Not the LaMenatzeach after. Just the bracha and the count.

---

### "La-Omer" vs. "Ba-Omer"

We say **"la-Omer"** (to/from the Omer) — not "ba-Omer" (in the Omer).

**Why?** We're counting **from** when the Omer sacrifice was brought. We're not counting within a period called "the Omer." The correct way: "Hayom achad asar yom **la-Omer**" — 11 days from the Omer.

This is why the correct Sephardi term is **Lag la-Omer** (the 33rd from the Omer), not "Lag ba-Omer."

The Ashkenazi text "ba-Omer" treats the Omer as a period of time. The Sephardi text "la-Omer" preserves the original meaning — counting from the Omer sacrifice.

---

## Siman 489 – Seder Tefillat Leil Sheni Shel Pesach u-Sefirat HaOmer

*Contains 10 Se'ifim*

---

### Se'if 1 – When to Count

**Shulchan Aruch:** On the second night of Pesach, after Arvit, we begin counting the Omer.

### After Arvit — Ashkenazi vs. Sephardi Practice

| Ashkenazim | Sephardim |
|---|---|
| Count immediately after the Amidah, **before** Aleinu LeShabeach | Count after the full Arvit service |

**Ashkenazi reasoning:** Arvit technically ends at the Amidah. Aleinu is an addition. Counting immediately shows the urgency of doing the mitzvah at the beginning of the night.

**Some held:** You should count even **before** Arvit — because the mitzvah of counting at the start of the night might override the usual rule of tadir ve-she'eino tadir, tadir kodem (regular mitzvot come first).

### Practical Ruling

| Scenario | What to Do |
|---|---|
| Praying Arvit at or near nightfall | Pray Arvit first, then count |
| Praying Arvit significantly later (10:00, 10:30, 11:00 PM) | Count the Omer at the beginning of the night, pray Arvit later |
| Community praying after sunset but before nightfall (common in England) | Count with the community after sunset — this is valid |

**Why count at the beginning of the night?** The Torah says "sheva shabbatot **temimot** tiheyenah" — seven **complete** weeks. The Gemara derives: counting must be at night (for completeness). The Rishonim extended this: it should be at the **beginning** of the night — as tamim (complete/wholesome) as possible.

**Is counting with a minyan better than counting on time?** No. No one holds that counting together with a minyan trumps counting at the proper time. The tiny hidur of counting with a community does not override the importance of counting at the beginning of the night.

## Community Practice

In England, where nightfall in this season can be 9:00–9:30 PM, the practical guidance:

- **In a community setting:** Count after sunset (valid le-chatchila for a de-rabbanan mitzvah). People are there, they'll remember, it's worthwhile.
- **If counting individually and not concerned about forgetting:** Try to wait until nightfall.

---

## Women and Sefirat HaOmer

**Status:** Sefirat HaOmer is a mitzvat aseh she-ha-zeman geramah (time-bound positive commandment) — because it must be done at night. Therefore, women are **exempt**.

**Can women count with a bracha?**

| Ashkenazi ruling | Sephardi ruling |
|---|---|
| Generally yes — women can take on a mitzvah and say the bracha (same as lulav, shofar, sukkah) | Generally no — how can you say "ve-tzivanu" (and commanded us) when you weren't commanded? |

**The Chida notes:** Many Sephardi communities (e.g., Iraq) did have women say the bracha on mitzvot like lulav. But the general Sephardi halacha follows the Shulchan Aruch — no bracha.

**Magen Avraham — even for Ashkenazim, two concerns:**

1. **Women may not understand the count:** There's a unique din in Sefirat HaOmer — unlike other mitzvot, you must **understand what you're counting**. With Shema, saying it in Hebrew fulfills the mitzvah even without comprehension. With Omer, comprehension is essential — because the essence of counting is knowing what you're counting.
2. **Women may forget to count consistently:** If you know you won't count every night throughout the seven weeks, there's an opinion you shouldn't start with a bracha at all.

**In practice:**

| Group | Practice |
|---|---|
| Ashkenazi women | Most count. Some with a bracha, some without. |
| Sephardi women | Count without a bracha (general practice). |
| Ben Ish Chai | Women shouldn't count at all (Kabbalistic reasons) — but this is not the accepted practice. |

## Why We Don't Count Twice Each Night (The Double-Counting Question)

Outside of Israel we keep two days Chag because of calendrical doubt. Logically, each night of the Omer we should count twice — once assuming Pesach was the first night, once assuming it was the second night. On Shavuot night we should still be counting (49th day if Pesach was the second night).

**Why don't we?** A count that isn't clear and precise **isn't a count at all**. If I say "tonight is 11 days — or maybe 10 days," I haven't counted anything. The essence of counting requires certainty. Double-counting would undermine the entire mitzvah.

**Principle:** We only observe the calendrical doubt (two days Chag) when it doesn't impose on any other mitzvah. When it would impair another mitzvah — like making the counting meaningless — we don't do it.

**This is also why you must understand what you're saying:** If you count in Hebrew but don't know what "achad asar" means, you haven't counted. Count in English if needed: "Today is 11 days of the Omer, which is one week and four days." With the bracha. Perfectly valid.

---

## Se'if 2 – Counting Before Nightfall / On a Cloudy Day

**Shulchan Aruch:** If it was a cloudy day (no clocks in those times), and a person counted thinking it was already night — but it was actually still before sunset — he must **repeat** the counting when it gets dark. "U-medakdekim einam sofrim ad tzeit ha-kochavim" — people who are precise don't count until nightfall. "Ve-chein na'og la'asot" — and so is the correct practice.

## Understanding the Three Time Windows

| Time | Status for Counting |
|---|---|
| **Before Plag HaMincha** (~1.25 halachic hours before sunset) | Counting is meaningless — too early for any nighttime mitzvah |
| **After Plag HaMincha, before sunset** | Some communities counted here (out of concern people would forget). Valid only with specific caveats (see below). |
| **After sunset, before nightfall** (bein ha-shmashot) | Valid le-chatchila — me'ikar ha-din, since Omer is de-rabbanan |
| **After nightfall** (tzeit ha-kochavim) | The **best** practice — fulfills even the Rambam's de'oraita standard |

**What the Shulchan Aruch is describing:** A case where someone counted after Plag HaMincha but before sunset — thinking it was already dark (cloudy day). He must repeat.

## Communities That Counted After Plag HaMincha

Some communities in the northern hemisphere counted after Plag HaMincha because nightfall was very late and they feared people would forget.

**If you find yourself in such a community:**

- Count **without a bracha** with them.
- Have in mind explicitly: "I don't intend to fulfill the mitzvah with this counting" (ein ani mitkaven latzeit).
- Later, when night actually falls — count again **with a bracha**.

**General principle:** You can say the Omer count at any time without it "counting" — if you explicitly have in mind that you're not fulfilling the mitzvah. This is because kavana (intention) is required for fulfillment.

### What Medakdekim Means

The Shulchan Aruch says "medakdekim" (precise people) wait until nightfall. This is **not** saying that counting after sunset is be-di'avad. Rather:

- **Me'ikar ha-din:** Counting from sunset is fully valid le-chatchila (since it's de-rabbanan).
- **Medakdekim:** To accommodate the Rambam who holds it's de'oraita, precise people wait until nightfall.
- **Both are le-chatchila** — one is just more precise than the other.

---

## Summary of Key Points

| Topic | Key Ruling |
|---|---|
| **De'oraita or de-rabbanan?** | De-rabbanan nowadays (Shulchan Aruch). Rambam: de'oraita. |
| **When to count** | After Arvit. If Arvit is very late — count at beginning of the night first. |
| **Earliest valid time** | After sunset (me'ikar ha-din). Medakdekim: after nightfall. Before Plag: meaningless. |
| **Community practice** | Count after sunset together — valid, practical. |
| **Individual practice** | Try to wait until nightfall if possible. |
| **Women** | Exempt. Sephardim: count without bracha. Ashkenazim: divided — some with bracha, some without. |
| **Language** | Must understand what you're counting. If you don't understand Hebrew numbers: count in English. |
| **La-Omer vs. Ba-Omer** | Sephardim: la-Omer (from the Omer). Ashkenazim: ba-Omer (in the Omer). |
| **Double counting** | Not done — would undermine the clarity required for counting. |
| **Why count upward?** | Each day has intrinsic value. You're building, not just waiting. |
| **Why no Shehecheyanu?** | (1) Nowadays it's only a remembrance, with sadness. (2) Shehecheyanu on Shavuot covers it. |

---

Watch or listen to this shiur: youtu.be/JqpIYyJGgO4 · More shiurim: rabbikada.com